

26NNCV01015 26NNCV01015

County: los-angeles

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Case Number: 26NNCV01015 Hearing Date: July 31, 2026 Dept: A

MOTION TO QUASH SERVICE OF SUMMONS

Los

Angeles Superior Court Case # 26NNCV01015

MP: Defendant Walnut Creek 1 LLC

RP: No opposition received

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

Valentina Cevallos

("Plaintiff") alleges that on December 8, 2025, she was walking across the shared yard at 3052 Burton Ave. in Rosemead when she was attacked by a pitbull which was kept on a long chain by tenant Defendant Angel Gonzalez ("Gonzalez"). Plaintiff alleges that the dog lunged at her

inner thigh and caused her to be thrown on the ground. Plaintiff contends Defendant Walnut Creek 1 LLC ("Walnut") and Gonzalez were previously notified that the pitbull posed a dangerous condition within the shared common area, but they failed to abate the hazard.

The Complaint, filed
February 11, 2026, alleges: (1) Premises Liability; and (2) General Negligence.

MOTION
ON CALENDAR:

On
April 24, 2026, Walnut filed a Motion to Quash Service of Summons and Complaint. The Court is not in receipt of an opposition brief. The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed consent to its being granted.

LEGAL
STANDARD:

C.C.P. § 418.10(a)(1) states: "A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion" to "quash service of summons on the ground of lack of jurisdiction of the court over him or her."

C.C.P. § 415.20(b) states:

(b) If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and

complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.

(C.C.P. § 415.20(b).)

C.C.P. § 416.10 states in relevant part:

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summons may be served on a corporation by delivering a copy of the summons and the complaint by any of the following methods:

(a)

To the person designated as agent for service of process as provided by any provision in Section 202, 1502, 2105, or 2107 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in effect on December 31, 1976, with respect to corporations to which they remain applicable).

(b)

To the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process.

(C.C.P. § 416.10(a)-(b).)

ANALYSIS:

A. Proof of Service

On March 12, 2026, Plaintiff filed the Proof of Service of Summons, indicating that Walnut had been served by substituted service on March 8, 2026 at 10:00 a.m. by serving "Park Grove – Agent for Service of Process." Registered process server, Homayon Taghavi, left the documents with "Rivas Mayela. Person in charge. (m/hisp/40/5'10/170/blk hair)" at the home located at 4758 Muscatel Avenue, Rosemead, CA 91770. The documents were thereafter mailed on March 8, 2026.

B. Discussion

Walnut

moves to quash service of the summons and complaint, arguing that Plaintiff has not established reasonable diligence before resorting to substituted service and service was not made on an authorized person. In California, a defendant's act of bringing a motion to quash service of a complaint under CCP § 418.10. does not establish that the defendant received valid statutory notice, nor does the defendant's actual notice of the lawsuit confer personal jurisdiction or cure defective service of process. *Mannesmann Demag v. Superior Court* (1985) 172 Cal. App. 3d 1118, 1124.

Under California law, while actual notice of the litigation is considered when determining whether a plaintiff has substantially complied with the service statutes, actual notice alone does not satisfy the statutory requirements for service of summons. *Id.*, *Dill v. Berquist Construction Co.*, 24 Cal. App. 4th 1426 (1994).

First,

Plaintiff's Proof of Service is not accompanied by a Declaration of Diligence showing that Plaintiff attempted to personally serve Walnut and/or the person apparently in charge. "[A]n individual may be served by substitute service only after a good faith effort at personal service has first been made: the burden is on the plaintiff to show that the summons and complaint 'cannot with reasonable diligence be personally delivered' to the individual defendant. [Citations.] Two or three attempts to personally serve a defendant at a proper place ordinarily qualifies as 'reasonable diligence.' [Citation.]" (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 389 [internal quotation marks and citations omitted].)

Second,

Walnut argues that Plaintiff did not serve an authorized person, a competent person "apparently in charge," or a registered agent of Walnut. Walnut argues that while Plaintiff served the documents at Walnut's registered agent, Park Grove located at the Muscatel address, it argues that service was not effectuated on the proper designated agent or person authorized to accept service on Walnut's behalf. (See C.C.P. § 416.10.)

In

support of the motion, Walnut provides its officer Van Nguyen's declaration. Mr. Nguyen states that there is no individual by the name of "Rivas Mayela" who was ever employed by

Walnut or by its agent for service of process, and he has never heard of, met, or communicated with any individual with that name. (Nguyen Decl., ¶¶3-4, 14.) He states that at the time of the alleged service, he was Walnut's only employee. (Id., ¶¶4-6.) (The Court notes that while Mr. Nguyen states he has attached Walnut's employee list as Exhibit A, no exhibits accompany the motion or declaration papers.) Mr. Nguyen states that Walnut does not employ any other individuals at the subject property or at the address associated with its agent for service of process, he was never served with the summons or complaint, and no competent person associated with Walnut was served as he is the only individual associated with Walnut's business operations. (Id., ¶¶8-10.) He states that no officer, manager, member, employee, or authorized agent of Walnut was served with the summons and complaint. (Id., ¶¶11-12.) He states if Walnut's authorized individual or employee had been served, those documents would have been communicated to him or brought to Walnut's attention, but this did not occur. (Id., ¶13.)

Based on Mr. Nguyen's declaration, Walnut has established that substituted service was not properly effectuated on Walnut's designated agent for service of process or person apparently in charge. Furthermore, the proof of service is not accompanied by a declaration of diligence detailing what efforts Plaintiff made prior to resorting to substituted service.

The motion to quash is granted.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant

Walnut Creek 1 LLC's Motion to Quash Service of Summons came on regularly for hearing on July 31, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE MOTION TO QUASH SERVICE OF THE SUMMONS AND COMPLAINT IS GRANTED.

THE CASE MANAGEMENT CONFERENCE SET FOR AUGUST 24, 2026 IS ADVANCED AND CONTINUED TO OCTOBER 28, 2026 AT 9:00 AM.

DEFENDANT WALNUT CREEK 1 LLC TO PROVIDE NOTICE.

IT IS SO ORDERED.